

HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Appeal No.62165 of 2021

Syed Ghazi Shah vs The State and another

JUDGMENT

Date of hearing:	<u>10.02.2022</u>
Appellant by:	Barrister Salman Safdar, Advocate.
State by:	Mr. Arshad Ali Farooqi, Deputy Prosecutor General.

Farooq Haider, J:- Through instant criminal appeal, Syed Ghazi Shah (appellant) has assailed the judgment dated: 20.09.2021 passed by learned Judge Anti-Terrorism Court, Faisalabad, whereby in case arising out of F.I.R. No.17/2021, dated: 04.08.2021 registered under Sections: 11-H, 11-I, 11-J and 11-N of the Anti-Terrorism Act, 1997 at Police Station: Counter-Terrorism Department (CTD), Faisalabad, learned trial court has convicted and sentenced him as under: -

<u>Convictions</u>	<u>Sentences</u>
<u>Under Section:</u> 11-F(6) ATA 1997	<i>“Rigorous Imprisonment”</i> for <u>one year</u> with fine of Rs.20,000/- and in default thereof, to further undergo one month simple imprisonment.

Benefit of Section: 382-B Cr.P.C. was also extended to the convict/appellant.

2. The machinery of law was set into motion by Ahmad Anwaar Corporal No.111, Counter Terrorism Department (CTD), District: Jhang (complainant/PW.4) through written application (Ex.PE/1) sent by him to the police station and briefly as per said written application, on 04.08.2021 at 11:35 a.m., the complainant alongwith Muhammad Atif Corporal No.170, Attique-ur-Rehman Corporal No.146 and operation team was present at Crescent Ujala Chowk Toba Road Jhang on official vehicle in search of activists of proscribed organization; he received information from source that a person who belongs to

proscribed organization “Tehreek-e-Taliban Pakistan” raises funds for proscribed organization, utilizes said amount for the terrorist activities of his proscribed organization, is now present at Jamia Chowk Gojra Road, Jhang, collecting fund and could be apprehended through immediate raid; considering the said information as credible; complainant constituted raiding party and reached there at 11:45 a.m.; on the pointing out of source, complainant saw that a person having receipt book in his hand was busy in collecting fund who was apprehended by the complainant with the help of his companions; On query, he disclosed his name as Syed Ghazi Shah son of Syed Najam Shah, Caste Syed resident of Post Office Martong, Kabalgaram, Tehsil Mortong, District: Shangla, presently resident of House No.17, Street No.8, Mohalla Qazzafi Colony, Badami Bagh, Lahore; on his personal search, a receipt book (P.2) of proscribed organization “Tehreek-e-Taliban Pakistan” having Serial No.011801 to 011830 was recovered from his left hand, on checking original of 13 receipts from serial Nos.011801 to 011813 were found issued (کٹی ہوئی) and copies (نقول) were available whereas receipt having serial No.011814 was not issued but the signature of the accused was present thereon; on all the receipts, “Tehreek-e-Taliban Pakistan” was written; complainant further recovered blue ball point, black carbon paper, black coloured bag having cash amount Rs.44,300/-, another receipt book having serial Nos.012301 to 012330; complainant also recovered cash amount of Rs.1830/- and original CNIC of the accused from his right side pocket; complainant prepared the parcel of receipt book of proscribed organization “Tehreek-e-Taliban Pakistan” having serial Nos.011801 to 011830 with the seals of A.A. and took the parcel alongwith ball point carbon paper, cash amount, original CNIC of the accused and another receipt book having serial Nos.012301 to 012330 into possession vide recovery memo (Exh.PG).

On the basis of above said written application (Ex.PE/1), case *vide* F.I.R. No.17/2021 (Ex.PE), dated: 04.08.2021 was registered under Sections: 11-H, 11-I, 11-J and 11-N of the Anti-Terrorism Act, 1997 at Police Station: Counter-Terrorism Department (CTD), Faisalabad.

On the conclusion of the investigation, report under Section: 173 Cr.P.C. was sent to the Court, charge was framed against the appellant under Sections: 11-F(6) and 11-N of the Anti-Terrorism Act, 1997, to which he pleaded not guilty and claimed trial.

Prosecution got examined six witnesses i.e. Rana Waheed Ahmad, Magistrate 1st Class, Faisalabad (PW.1), Ali Sher Corporal No.719 (PW.2), Irfan Mehmood 5114/C, Naib Moharrar (PW.3), Ahmad Anwaar Corporal No.111 (complainant/PW.4), Muhammad Atif Corporal No.170 (PW.5) and Muhammad Saeed Farooq Inspector (Investigating Officer/PW.6) and while giving up Attique-ur-Rehman Corporal No.146 closed its evidence. Then statement of the accused/appellant was recorded under Section: 342 Cr.P.C. in which he refuted the allegations leveled against him; he did not record his statement under Section: 340(2) Cr.P.C., however, he produced two witnesses in his defence i.e. Muhammad Tahir (DW.1) and Rana Muhammad Rafique (DW.2) and also produced attested copy of FIR No.277/2021 dated 26.06.2021 registered under Section: 365 PPC at Police Station: Masti Gate, Lahore (Exh.DA) and closed his evidence.

Learned trial Court after conclusion of the trial has convicted and sentenced the appellant as mentioned above *vide* impugned judgment dated: 20.09.2021.

3. Learned counsel for the appellant submits that conviction recorded and sentence awarded to the appellant through impugned judgment are against the law and facts of the case and prays for acquittal of the appellant by accepting the appeal.

4. Conversely, learned Deputy Prosecutor General while controverting the submissions of learned counsel for the appellant has supported the impugned judgment and prays for dismissal of the appeal.

5. Arguments heard. Record perused.

6. It has been noticed that although the appellant was booked in the case with the allegation that he was collecting funds for his proscribed organization i.e. "Tehreek-e-Taliban Pakistan" yet there is no evidence available on record to show that he is member of said organization or has any link with the same; there is nothing on record to show that he had been collecting funds for the said proscribed organization in the past; no evidence was produced to show that how he was inciting the public while standing at the chowk (چوک) for raising fund for the proscribed organization and even any instrument for announcement has not been recovered from the possession of the appellant at the spot; prosecution is silent about the modus operandi of such fund raising for the proscribed organization; it is not out of place to mention here that any person from whom

the appellant demanded fund was not joined into the investigation; prosecution could not establish that how, when and from whom appellant obtained the alleged receipt book of proscribed organization or from where it was got printed; It is also pertinent to mention here that it is case of prosecution that appellant was apprehended when he was busy in collecting fund for the proscribed organization and as many as 13 receipts from Serial No.011801 to 011813 of the Receipt Book were recovered from his possession which were issued by him but surprisingly none of the said donors/persons who gave him fund for the proscribed organization was apprehended or joined into investigation of the case. It goes without saying that it is categorically provided in the statute that a person commits offence under Section: 11-H of the Anti-Terrorism Act, 1997, who provides fund as well as who receives such fund likely to be used for terrorism. Section: 11-H of the Anti-Terrorism Act, 1997 is reproduced as under for ready reference:-

- “11-H. Funds Raising.---(1) A person commits an offence if he:***
- (a) Invites another to provide money or other property, and*
 - (b) Intends that it should be used, or has reasonable cause to suspect that it may be used, for the purpose of terrorism [or by a terrorist or organization concerned in terrorism].*
- (2) A person commits an offence if:***
- (a) he receives money or other property, and*
 - (b) intends that it should be used, or has reasonable cause to suspect that it may be used, for the purposes of terrorism [or by a terrorist or organization concerned in terrorism].*
- (3) A person commits an offence if he:***
- (a) provides money or other property; and*
 - (b) knows or has reasonable cause to suspect that it will or may be used for the purposes of terrorism [or by a terrorist or organization concerned in terrorism].*
- (4) In this section a reference to the provision of money or other property is a reference to its being given, lent or otherwise made available, whether or not for consideration.]” (emphasis added)***

7. Prime object of every law dealing with crime is always to prevent the crime in society and of course to have reformation/cure by awarding punishment and even in the Anti-Terrorism Act, 1997 it has been clearly mentioned as under:-

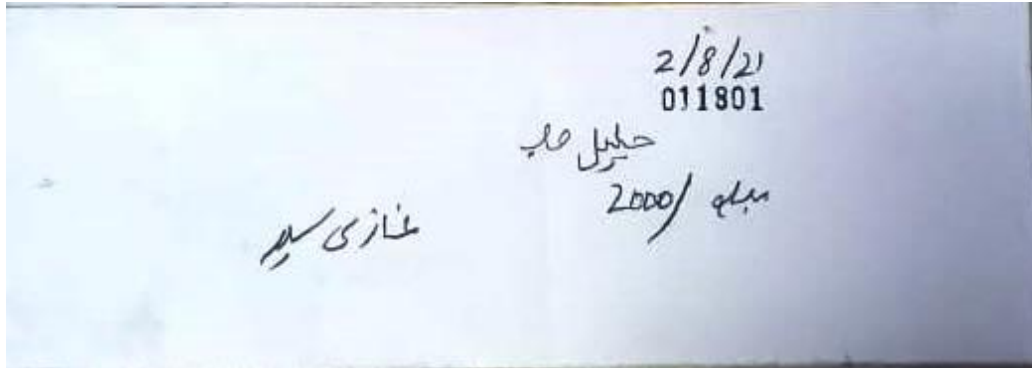
“WHEREAS it is expedient to provide for the prevention of terrorism, sectarian violence and for speedy trial of heinous offences and for matters connected therewith and incidental thereto;

It is hereby enacted as follows:- “

Therefore, intention of legislature behind Anti-Terrorism Act, 1997 is crystal clear i.e. to prevent/crush the terrorism. Any Terrorist Organization cannot run without economical support/finance and fund raising is back bone of the same, hence aforementioned specific provision i.e. Section: 11-H was incorporated/added in Anti-Terrorism Act, 1997 through Ordinance No.XXXIX of 2001 and both acts i.e. giving and receiving of fund were made offences. There is no two ways about it that if no one will give fund then there will be no question about receiving the same and both acts i.e. giving and receiving fund are inter-connected, bonded, co-related and inseverable. Hence, with justified wisdom, act of giving the fund was also made an offence. If following the true spirit of legislation, fund givers are apprehended, taken to task and punished then of course one will think before giving such fund and buying worry of facing prosecution as well as getting punishment and ultimately back bone of terrorist organization would be crashed, therefore, catching fund donor first is more necessary than fund receiver. When it is not the case of prosecution that someone was forcibly collecting fund then both i.e. fund donor as well as collector were to be jointly booked. Omission on part of Investigating Agency in this regard i.e. not apprehending the person who gives such fund is punishable under Section: 27 of the Anti-Terrorism Act, 1997. In this case, prosecution claimed that appellant was busy in collecting fund when apprehended but no fund giver was apprehended or traced, which casts doubt on veracity of the case of prosecution.

8. So far as recovery of receipt book (P.2) from serial No.011801 to 011830 is concerned, as per case of prosecution, same was secured through sealed parcel with seal of A.A., similarly specimen signatures of the appellant were secured through sealed parcel, however, report of Punjab Forensic Science Agency (i.e. Ex.PJ) does not reflect that receipt book as well as specimen signatures received there were sealed. Therefore, safe custody and transmission of receipt book from place of recovery and of specimen signatures from date of preparation till their receipt by the Punjab Forensic Science Agency, Lahore could not be established which has vitiated the conclusiveness and reliability of the report of Punjab Forensic Science Agency, Lahore and rendered it incapable of sustaining conviction. Even otherwise, carbon copies of receipts from serial No.011801 to 011813 neither contain name, flag or any other distinguished mark of any proscribed organization nor show that figure mentioned in the same is about any

amount “given or taken” as fund for any proscribed organization; image of one receipt is pasted below for ready reference:-



Hence, same are of no evidentiary value. As far as availability of signatures of appellant on one printed receipt bearing serial No.011814 is concerned, same is otherwise not filled and also not showing receipt of any fund. Similarly, other receipt book bearing serial No.012301 to 012330 (P.9) is also not showing receipt of any fund. Therefore, same are also of no help to the case of prosecution.

09. Nutshell of the above discussion is that prosecution has been failed to prove its case against the appellant beyond shadow of doubt and in such state of affairs there is no need to discuss defence version.

10. In view of all above, instant appeal filed by Syed Ghazi Shah (appellant) is **allowed**, conviction recorded and sentence awarded to the appellant through the impugned judgment dated 20.09.2021 passed by learned trial court/Judge Anti-Terrorism Court, Faisalabad, are hereby set aside. He is acquitted of the charge and shall be released forthwith if not required in any other case.

(ALI BAQAR NAJAFI)
JUDGE

(FAROOQ HAIDER)
JUDGE

APPROVED FOR REPORTING.

(ALI BAQAR NAJAFI)
JUDGE

(FAROOQ HAIDER)
JUDGE